

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 9, 2026
8:30 a.m./1:30 p.m.

19. SARAH SCHMIDT V. MIKE SCHMIDT

PFL20180569

Respondent filed a Request for Order (RFO) seeking modification of the current child custody and parenting plan orders on April 14, 2026. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on May 14, 2026 and a review hearing on July 9, 2026. Upon review of the court file, there is an address verification filed, however, there is no Proof of Service showing Petitioner was properly served.

Only Respondent appeared at the CCRC appointment. As such, a single parent report was filed with the court on May 14, 2026. Copies were mailed to the parties the same day.

The court drops the matter from calendar due to the lack of proper service.

All prior orders remain in full force and effect.

TENTATIVE RULING #19: THE COURT DROPS THE MATTER FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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July 9, 2026
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20. CELESTE SPINA V. ANTHONY CATALONO

24FL0448

Respondent filed a Request for Order (RFO) on May 13, 2026, seeking visitation orders. Respondent is seeking to swap weekends with Petitioner to allow him to travel with the minors for a family celebration in Colorado. Upon review of the court file, there is no Proof of Service showing Petitioner was properly served.

Nevertheless, Petitioner filed a Responsive Declaration on May 21, 2026. Proof of Service shows it was served on May 30, 2026. Petitioner objects to the request and asks the court to deny the weekend swap.

Respondent filed a Reply Declaration on June 1, 2026. It was served the same day. Respondent reiterates his request to swap weekends.

Petitioner filed a Declaration on July 1, 2026. There is no Proof of Service for this document, therefore, it has not been considered. Further, this is a sur-reply, which Petitioner did not obtain leave of court to file, as such, it would not have been considered on this basis. Last, even if the court were to consider it a supplemental declaration, it was filed less than 10 days prior to the hearing, which makes it late filed. The court would not have considered it on this basis as well.

The court has read and considered the filings as outlined above. The court finds Respondent has provided the required 30 days' notice to exercise vacation time. The court grants the request to swap weekends. Respondent shall have parenting time from August 7, 2026 - August 10, 2026. Petitioner shall have parenting time August 14, 2026 – August 17, 2026. Parties will then return to their previous alternating weekends.

All prior orders not in conflict with this order remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #20: THE COURT FINDS RESPONDENT HAS PROVIDED THE REQUIRED 30 DAYS' NOTICE TO EXERCISE VACATION TIME. THE COURT GRANTS THE REQUEST TO SWAP WEEKENDS. RESPONDENT SHALL HAVE PARENTING TIME FROM AUGUST 7, 2026 – August 10, 2026. PETITIONER SHALL HAVE PARENTING TIME AUGUST 14, 2026 – August 17, 2026. PARTIES WILL THEN RETURN TO THEIR PREVIOUS ALTERNATING WEEKENDS.